

Council Meeting
September 25, 2019
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The Claremont City Council held a meeting on Wednesday, September 25, 2019, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Kristin Kenniston
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Also present:

Ed Morris, City Manager
Mary Walter, Finance Director

AGENDA CHANGES

Mr. Morris said the Waiver of Merit Plan Salary Scale for Grade 6 Employee needs to go to the Personnel Advisory Board before coming to the Council. He asked to remove it from this agenda and be placed on the October 9th agenda.

MAYOR’S NOTES

- The Legislature has passed the state budget. She thanked Representative Stapleton for giving her the statistics. There is a significant amount of aid for Claremont over the next two years: ongoing education funding for FY20, \$1.185 million and FY21, \$1.436 million; FY21 one time education & infrastructure \$2.9 million; for the municipality \$333,485 each year of the biennium; total \$6.193 million over the course of two years.
- She thanked all the Representatives, the Senator, and all the people who reached out and testified.
- She and Mr. Morris attended the Mayors Roundtable in Nashua. The common theme was economic development and revitalization of downtown.
- Energy Advisory Committee partnered with the City, Home Depot, and LaValley’s to host a NH Saves Button Up workshop at the tech center. It can be viewed on CCTV.
- Thanked all who went to the City Manager’s Meet & Greet.
- Introduced Ed Morris and welcomed him.

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- Joint Council School Board meeting tomorrow, 6:30 p.m. at the Sugar River Valley Regional Technical Center.
- Last day to file for Council seat is Friday.
- Saturday is Pajama Drive being hosted by the Sugar River Rotary for kids in foster care.
- Celebrating Recovery Day Saturday at Barnes Park.
- Ms. Kenniston said she attended a City and Town Clerk meeting September 11-13 and Claremont's City Clerk, Gwen Melcher was recognized for 20 years of service.
- Ms. Kenniston noted Claremont's voting machines are 15-20 years old and are becoming obsolete, and at some point, they will need to be replaced.
- Mayor Lovett said after nine months, this would be John MacLean's last Council meeting. She said he is the epitome of a diplomat and his work went a long way toward healing this community.
- Mr. MacLean thanked the Council and staff for recognizing him. He gave congratulations on appointment of the new City Manager, Ed Morris. He said Claremont has an incredible future and it will take everyone pulling toward it.

CITY MANAGER'S REPORT

- Ed Morris, City Manager, thanked the City Manager Search Committee and the Council for putting their faith in him. There is a bright future for Claremont. He spoke of the vibrancy starting in downtown Claremont and that this is an exciting time to be here.
- Nancy Merrill, Planning and Development Director, applied for the Certified Local Government Program; program is jointly administered through the National Park Service and the State Historic Preservation Office (SHPO). Purpose is to help communities save places of irreplaceable historic character. The City has been awarded this certification. The City will now be eligible for grant funds and access to SHPO staff.
- The City has contracted with United Construction for the 139 Main Street demolition. Start date is October 15, substantial completion expected to be October 25 and final completion is expected to be December 13.
- The crosswalk construction in front of City Hall will use the triangle as a pedestrian safe haven; shorter crosswalks will increase safety.
- East Street paving should be done soon.
- Myrtle Street paving October 3rd and 4th.
- Regarding a light up sign at the City Hall crosswalk, the Traffic Advisory Committee and the NH DOT don't feel it would be necessary at this time. Ms. Walter said there will be lights at the CSB Community Center (CSBCC) and Stevens High School crossings.
- Stephan Hamilton, Interim Assessor, gave an update on the results of the revaluation. 169 came to hearings with Vision. Values are up, generally. Overall taxable properties, not including utility properties, values are up from \$704,449,997 to \$725,838,736, little more than 3% increase.
- Regarding the impact to traffic during the 139 Main Street demolition, Ms. Merrill said a safety plan will be established. The active period for the demolition will be about two weeks.

CITIZEN'S FORUM

Rebecca Mackenzie, Ward 2, thanked all who participated in the Global Climate Strike on Friday. On October 11 a Quaker visionary, George Lakey, is coming to Claremont to present a program called "Creative Holy Vision," 12:00-1:30 p.m. at the CSBCC. The program will be on visioning, what do we want as a community and how to get there.

OLD BUSINESS

None

NEW BUSINESS

Census

Mayor Lovett said how well Claremonters participate in the Census determines how much money the community will receive.

Tom Simmons, US Census Bureau, said that Census people are currently doing address checking. The Census gets sent to occupants of the address, not particular individuals. At the end of March, a team will do a homeless count. The Census questionnaire can be answered online or on the phone. If, after the third mailing, there is no response, a Census taker will go to the home. The Census will be hiring local Census takers. The number of residents determines funding for Meals on Wheels, Medicaid Part B, school lunches, special education, economic development programs, Extension programs, fuel assistance programs, WIC programs, etc. The Census is Constitutionally mandated. Every single body in the community counts. Census is 100% confidential. Census taker jobs pay \$16.50 an hour. Certain demographics tend to be undercounted; number one is 0-5 year olds. It is estimated that one million children were undercounted in the 2010 census. In most towns in this area, about 3% of the population is under 5 years old. Yes, children count. Claremont's response rate is 52-66%. It is important to get the word out. Rebecca Vinduska, Planning and Development Business Development Coordinator, is spearheading this.

Presentation on Mayors Challenge to End Veteran Homelessness

The Mayors Challenge to End Veteran Homelessness is an interagency initiative that launched in June 2014 and calls on cities, counties and states to commit to ending and preventing homelessness among Veterans in their communities.

Mayor Lovett introduced David Tilly, Regional Administrator for HUD (Department of Housing and Urban Development) and Mandy Reagan, NH Bureau of Housing Support.

Mr. Tilly said the Mayors of Concord, Nashua, Berlin, Franklin, and Keene are on board with the challenge. It is helpful to get the word out to 2-1-1. Other communities have partnered with the American Legion and VFW Posts.

Ms. Reagan said ending veteran homelessness means that when someone is identified as a vet and they are homeless, there is a quick and robust response. Identification is crucial. It is important to get homeless vets into housing. They are working with Southwestern Community Services on this.

Jimmie Nielsen and Sonia Duhamel, were representing REMIX, where half their board of directors are former military. REMIX partnered with Veterans First through Harbor Home. REMIX donated \$1,000 to Boulder Point Housing in Plymouth.

James England, American Legion Adjutant, would like the Legion to be considered a partner for veterans.

Mr. Tilly asked the Council if it would make it a legacy that any veteran seeking housing will be helped.

A motion was made by Mr. Koloski and seconded by Ms. Kier to support the Mayors Challenge to End Veteran Homelessness.

Voice vote: motion carried 9-0.

North Light Energy Solar Proposal

Mr. Morris said in April, the Council gave permission for North Light Solar to do some testing on the site and to negotiate terms of a lease. This will come back at the October 9th meeting for a vote.

Ms. Merrill introduced Aaron Svedlow from North Light Energy (NLE).

Ms. Merrill said there are four parcels behind Wheelabrator that NLE is interested in and the Council will be asked vote on two of the lots. The City lots are 123 acres. NLE will not use any wetlands. Site plan approval by the Planning Board is required. One lot is privately owned; one is CDA (Claremont Development Authority) owned and two are City-owned. During the operations period of the lease, the terms would be \$1,000/acre a year for rent, with an escalator over 20 years, with several 5 year options; one-time payment of \$175,000 to fund an economic development project. There will be a PILOT (Payment in Lieu of Taxes) which would be a separate agreement (\$10,000 per MW per year), also with an escalator clause in it. There will be a permanent access easement for the City through the project area that will allow access to the remaining land. The land to the north is currently leased to Gary LaClair, farmer. There will be restrictions in developing in the wetland area. There will be a separate option agreement referencing a PPA for 3-4 MW of power. There will be a clause that if a better deal is offered to another community, the City would get the same deal. This land is not prime land; it is zoned Industrial. Green Mountain Power and Eversource go through the property. There are topography challenges. The City recommends this use for that lot.

Mr. Svedlow said the first stage of interconnection process with Green Mountain Power and Eversource has been completed and now they will move to the impact study phase. This project has a power contract with Eversource, and they are looking to give the City the opportunity to get power from the project, which will be a separate negotiation. Over the 20-year period, the City would receive approximately \$3.9 million for leases, tax stabilization, and economic development payments; approximately \$415,000 in year one, and \$10,000 per MW (escalating); and \$1,000 per acre per year for the leases; plus an additional option up front of \$5,000. There will be training for the Fire Department and they will install Knox boxes. The City property consists of 60-90 acres that are buildable. The overall project will be 100-120 acres maximum. Regarding habitat, runoff and improving the soil, the majority of the property has been heavily logged. They will put the panels in a meadow; use seed mix for animals and water drainage. Fencing will be wildlife accessible. The power contract is for 20 years and the life of the solar panels is 25-30 years. After 20 years, the owners will pack up the panels and recycle them. There is a decommissioning clause in the lease.

Ms. Merrill said the biggest concern with large-scale solar is the location, so this works. The Energy Committee is looking at a solar ordinance to allow City input on locations. Currently, the City gets little money from these parcels. The lease and rent from this project is about \$160,000 a year for the City. Some of the lease money is for the CDA, so they can put that money into the downtown.

Mr. Svedlow said this is an initial stage of the project. Moving forward, they will have public open houses, etc. They are going through NH DES regarding altering the terrain.

Paul LaCasse, Ward 2, asked if rents/leases are set for 20 years. Ms. Merrill said there is an escalator in the lease and a PILOT. That information will be in the next packet.

Joe Osgood, Ward 1, asked about having a bond to clean up the site at the end of the contract.

Reb Mackenzie, Ward 2, asked when this goes online, if it will shut down the possibility of the incinerator coming back online. Mr. Svedlow said under the ISO New England process, they have to interconnect to the grid so as not to affect any other facility, so this would not affect the incinerator from coming online again.

Mr. Svedlow said regarding the bond, toward year 15, there will be a clause that they will post a security to decommission the facility.

Reb Mackenzie, Ward 2 resident and Energy Committee member, asked how much land will be deforested with this project. Mr. Svedlow said they are still working on the site plan. He said the area has been heavily forested. Typically, there are restrictions on the time of year to clear the area. In his past life as a biologist, he noted NH lacks open habitat. Solar fields can be used as somewhat open fields.

Ms. Merrill said this will go to the Conservation Commission for feedback. Impact will be avoided in the wetland.

Resolution 2020-9 to Accept Donation of Approximately \$6,500 from Tiger Sharks to the CSBCC Scholarship Fund – Public Hearing

WHEREAS the Claremont Tiger Shark Swim Team has determined that it has unexpended funds in the amount of six thousand, eight hundred, seventy-one dollars and ninety-one cents (\$6,871.91); and

WHEREAS the Claremont Tiger Shark Swim Team desires to give these unexpended funds to the Claremont Savings Bank Community Center (CSBCC) Scholarship Fund to provide youth and families, who are economically or circumstantially disadvantaged, with an opportunity to participate in a variety of positive recreational activities; and

WHEREAS the City now desires to accept said donation for the CSBCC Scholarship Fund;

NOW THEREFORE BE IT RESOLVED that the City Manager or his designees are authorized to accept said funds from the Claremont Tiger Shark Swim Team for the CSBCC Scholarship Fund. *(Majority Vote Required)*

Tim Hernon, Superintendent of Parks & Facilities, said in 2009, the Claremont Tiger Shark Swim Team became a nonprofit. They are no longer functioning in the same capacity and they no longer have a charitable status. Therefore, they would like to move their remaining funds to the CSBCC Scholarship Fund.

A motion was made by Mr. Damren and seconded by Ms. Kier to adopt Resolution 2020-9 to Accept Donation of Approximately \$6,500 from Tiger Sharks to the CSBCC Scholarship Fund.

Mr. Damren read the resolution into the record.

Mr. Hernon said they are building the endowment fund and this money will go toward that.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Voice vote: motion carried 9-0._

Accept Donation of Watercolors for Fiske Free Library

Mike Grace, Librarian, said that Phyllis Bailey was a graduate of SHS in 1949; she went on to art school in Connecticut. Ms. Bailey wishes to donate two watercolors to the Library.

A motion was made by Ms. Kier and seconded by Mr. Koloski to accept with sincere appreciation a donation from Phyllis R. Bailey of a watercolor painting of the City Hall Clock Tower, valued at \$325.00, and a watercolor painting of the Fiske Free Library, valued at \$325.00, for the Fiske Free Library.

Voice vote: motion carried 9-0.

Waiver of Merit Plan Salary Scale for Grade 6 Employee

Moved to the October 9th meeting.

Ordinance 569 Gender Identity Changes – First Reading

The purpose of the proposed changes is to update the Claremont City Code to reflect changes in state law that prohibit discrimination based on a person's gender identity and to conform Sections 2-102 and 2-385 of the Claremont City Code to list the same protected classifications. The changes relative to adding gender identity as a protected classification are recommended to the City Council by the Policy Committee.

A motion was made by Mr. O'Hearne and seconded by Ms. Kier to suspend Council Rules to not have to read the full ordinance as it was read at the last meeting.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Kenniston - yes

Kier - yes

Koloski - no

Pope - yes

Lovett - yes

Motion carried 9-0.

Mr. Pope read the explanation of proposed action into the record.

A motion was made by Mr. Damren and seconded by Ms. Kier to adopt Ordinance 569 Gender Identity Changes on first reading.

Voice vote: motion carried 9-0.

Ordinance 570 Police Commission – First Reading

The purpose of this proposed change is to revise the ordinance governing the Police Commission to be consistent with applicable law and City practice. The current ordinance consists of one section (Section 2-282) located in Chapter 2, Article III, Division 9, titled Department of the Police. The proposal is to move the current Section 2-282 (Powers of the Police Commission) into Chapter 2, Article II (Boards, Committees and Commissions) to be located within a new Division 9 titled Police Commission. The new sections would be structured in a manner similar

to the existing divisions governing other commissions and boards, including establishment, composition, powers and duties, and rules and procedures. The existing Chapter 2, Article III Division 9 – Department of the Police would remain where it is, Section 2-281 would be amended to add a cross-reference to the new Police Commission provisions, and Section 2-282 would be retained as “Reserved” for future provisions regarding the Police Department.

The establishment section would explain the unusual origin of the Police Commission. It was first established in 1947 by a special act of the NH Legislature, before the City had adopted the city form of government or the city charter. The Legislature has amended that original legislation three times over the years. In accordance with Section 69 of the City’s Charter, today the Police Commission continues to be governed by these special acts of the Legislature rather than the provisions of RSA 105-C. By capturing this history in the ordinance, future questions regarding the Police Commission may be more easily resolved.

The remaining provisions detail the composition of the Commission, appointment and removal of commissioners, powers and duties of the commission, and the relationship among the Commission, City Manager, and City Council regarding the oversight and funding of the Police Department.

Enactment of this Ordinance will repeal Chapter 2, Administration, Article III, Section 2-282, amend Section 2-281, and revise Chapter 2, Administration, Article II by inserting a new Division 9 – Police Commission, and adding new Sections 2-134 through 2-137. This change was requested by the City Council upon the recommendation of the Policy Committee.

Mayor Lovett said the Policy Committee gave its recommendation to amend part of the Municode, Police Department, and to add a section for Police Commission.

Ms. Kier read the explanation of proposed action into the record.

Mr. Pope and Ms. Kier read the ordinance into the record.

A motion was made by Mr. Pope and Ms. Kier, and seconded by Mr. Damren to adopt Ordinance 570 Police Commission on first reading.

Police Chief Mark Chase said he was part of the Policy Committee’s discussions and he is in support of this ordinance.

Voice vote: motion carried 9-0.

LSR Discussion Regarding Appointment of Police Commissioners

Mayor Lovett said the Policy Committee has held discussions about how Police Commissioners are appointed. RSA 105 is irrelevant; the City has to abide by the law that established the Police Commission in Claremont. If Councilors desire to change how commissioners are appointed, that has to go through the state to change state law.

Chief Chase said he is in support of how the commissioners are appointed; he supports the City Manager selecting them.

Mr. Stone would support either the Council appoint or voters elect the commissioners.

Ms. Kier said if the Council wanted to appoint the commissioners, she would be okay with that, but if it's working, leave it as is.

Mayor Lovett said Sheriff John Simonds, Policy Committee member, is not in favor of commissioners being appointed by the Council or elected.

Mr. O'Hearne thinks that Police Commissioners without police experience is a problem. Also, he thinks it's a problem that if the City Manager can appoint them, he can also remove them. He thinks the Council should appoint them.

Ms. Kenniston agreed it should be a Council appointment.

There was a discussion of civilian oversight. Chief Chase said most cities and towns don't have Police Commissions. He is in favor of civilian oversight. He doesn't think it's a detriment to the community.

After some discussion, Mayor Lovett said based on the discussion, she wants to do some research. The LSR submission deadline has passed in the House. The Senate deadline is late November/early December.

Mr. O'Hearne, who is a House Representative, said he put in a placeholder, just in case, so it can be amended or thrown out. Mayor Lovett said this is a Council of nine and the idea is to get consensus of a quorum of what to do.

A motion was made by Mr. Pope and seconded by Mr. Stone that the Claremont City Councilors support creating an LSR which has the Claremont City Council appointing Police Commissioners.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - no

Kenniston - yes

Kier - no

Koloski - yes

Pope - yes

Lovett - no

Motion carried 6-3.

Mr. Pope asked the Reps present who would help craft the language. Mr. O'Hearne said attorneys do that.

Mr. O'Hearne will sponsor the bill.

Holiday Display – Policy Committee Recommendation

Mr. Damren read the Policy Committee's recommendation.

Holiday Display Recommendation:

The Policy Committee, over the course of several months and with input from the public and city administration, reviewed four options (included in Council packet). Though the idea of continuing without a policy was discussed, such an approach would set the stage for the following:

- continuation of the debate, negatively impacting the celebration of the Christmas holiday season
- the possible creation, if no guidelines were established, of a display that could be interpreted as unconstitutional.

Several cases have been brought before the Supreme Court in previous years questioning the constitutionality of specific Christmas holiday displays with both secular and religious symbols on publicly owned property. The Court's ruling of each case was dependent upon the diversity and placement of the symbols, and it ruled in favor when these conditions were satisfied. These variances in rulings are also reflected at the local level. The Policy Committee has received legal opinions that are conflicting regarding the constitutionality of the current holiday display (NHMA email, Attorney Conair's input, FFRF freedom from religion foundation).

While disagreement exists in the public as to whether religious symbols should be included in the display, there is agreement that improvements to the current display would address multiple concerns. For those in favor of a religious/secular display, the tradition of the display is upheld and the constitutionality of it is better maintained. For those who favor a secular display, the focus on diversity and equanimity ensures that religious symbols do not enjoy a place of prominence.

There is a desire to minimize the cost of having the Christmas holiday display by utilizing volunteers to erect and dismantle it. The management of this display is an operational matter and how it is managed is up to the city manager. In years past, the management of the volunteers has come under the supervision of the Director of Parks and Recreation. The hanging of the lights was conducted by the Fire Department under the supervision of the Chief.

Given the above, the Policy Committee recommends that the Council move forward with a policy regarding Christmas holiday displays of both secular and religious symbols on city owned property. It also recommends that the policy include the following components:

Background: Historical significance to the community.

Ownership, Storage and Maintenance – The religious and secular symbols displayed on public property are donations to the City and, with the approval of the City Council, are owned by the City. Therefore, the City has responsibility for the storage and maintenance of these symbols.

Transportation of Symbols – The City will be responsible for transporting the symbols to/from the point of assembly.

Erecting/Dismantling the Display – With the exception of the hanging of the lights, volunteers would come under the supervision of the city administration as outlined by the city manager.

Organization of Display – Nighttime lighting will not highlight one symbol over another. Religious and secular symbols will be interspersed, but not grouped by type. Messages should be generic, but reflective of the season (i.e. Peace on Earth, Happy Holidays). Display items consistent with historical, traditional, or evolving themes of the Christmas holiday season.

Signed,
The Policy Committee

Mr. Koloski said this policy doesn't address other religions coming forward and wanting to display their symbols in the park. He doesn't believe there always has to be a written policy. He's not in favor of this.

Chief Chase talked about a previous discussion with Sheriff John Simonds and Parks & Recreation Director Mark Brislin and they agreed that a policy saying what can or cannot be done by City employees is not a bad thing.

Ms. Kier said if other religions want to donate to the display, they can use the donation policy.

Mr. Pope agreed with having a policy to protect City employees.

A motion was made by Ms. Kier and seconded by Mr. Damren to approve this recommendation and to forward this to legal counsel in order to craft this into a draft ordinance.

Mayor Lovett opened the discussion to the public.

Joe Osgood, Ward 1, is in favor of leaving this as status quo. Even what we have now can be challenged if plaintiff believes it is not diversified enough. Last year a very small percentage of the 13,000 people who live in Claremont made a bunch of noise about the Nativity scene, and a very high percentage of people in Claremont are in favor of keeping the Nativity scene.

Walt Stapleton, Ward 3, said without a policy, a display could be created that violates the Constitution. He is in favor of creating a policy.

Mr. O'Hearne said he would like to hear from the public before deciding.

A motion was made by Mr. O'Hearne and seconded by Ms. Kenniston to table this to the next meeting.

Roll call vote:

Lessard - no

O'Hearne - yes

Stone - yes

Damren - no

Kenniston - yes

Kier - no

Koloski - no

Pope - no

Lovett - no

Motion failed 3-6

Ms. Kenniston was in favor of going without a policy, but if a policy is needed, she sees the value of protecting employees.

Mr. Pope said a policy is needed to protect employees and assets.

Roll call vote:

Lessard - yes

O'Hearne - no

Stone - no

Damren - yes

Kenniston - no

Kier - yes

Koloski - no

Pope - yes

Lovett - yes

Motion carried 5-4.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Pope said the Policy Committee sunsets at the end of this Council term. Mayor Lovett said at some point Council should vote to make it a standing committee. Mr. Pope would like this as an agenda item. He said the Finance Committee is in the same category. Mayor Lovett said this can be placed on the second meeting in October.

Mr. O'Hearne disagreed with Mr. Pope and said this should be done by the incoming Council.

Mr. Koloski asked about discussing Elderly Exemptions and Veteran Credits. Mayor Lovett said that will go on the October 23rd agenda. Mr. Koloski would like outreach to be done to the Senior Center and to the housing complex for that meeting.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:51 p.m., a motion was made by Mr. Damren and seconded by Mr. O'Hearne to adjourn.

Voice vote: motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council